



U.S. Department
of Transportation

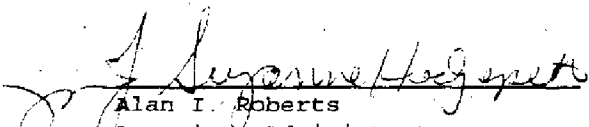
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9618 (EXTENSION)
THIRD REVISION August 20, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9618 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to December 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 7 1995

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

ENPAC Corporation
Chardon, OH

January 20, 1995

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS INCONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.

Expired - No Renewal
NOT Active



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AUG 20 1991

DOT-E 9618
(THIRD REVISION)

1. ENPAC Corporation, Jacksonville, Florida, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation in commerce of damaged or leaking packages of hazardous materials described in paragraph 3 below subject to requirements specified herein. This exemption authorizes the manufacture, marking and sale of a polyethylene, removable head, salvage drum not to exceed 95-gallon capacity for overpacking damaged or leaking packages of hazardous materials, or for packing hazardous materials that have spilled or leaked, for repackaging or disposal, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application from ENPAC Corporation (formerly Bondico, Incorporated) dated May 29, 1990, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon and supplemental letters dated October 30, 1990, January 24, 1991, and May 8, 1991.

3. HAZARDOUS MATERIALS (Descriptor and class). Hazardous materials in salvage drums conforming to the provisions of Section 173.3(c).

4. PROPER SHIPPING NAME (49 CFR 172.101). Specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.3(c).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a polyethylene removable head, salvage drum not to exceed 95-gallon capacity (rotationally molded of medium-density polyethylene resin). The minimum wall thickness of the container body and lid must be as shown on ENPAC Corporation drawing number POP-9618-A on file with the Office of Hazardous Materials Exemptions and Approvals. In no case may the wall thickness of the container body and lid be less than 0.125 inch.

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Also, randomly selected drums must be capable of satisfactorily withstanding without leakage, the performance tests prescribed in 49 CFR 178.19-7(a) except for the hydrostatic pressure test which is required at 5 pounds per square inch gauge rather than 15 pounds per square inch gauge. Drum must be as shown in Bondico, Inc. drawing (dated 9-22-86) included as Appendix A of supplementary letter dated October 3, 1986, and molded of medium-density polyethylene, whose properties are given in data furnished in a letter dated October 27, 1986.

8. SPECIAL PROVISIONS.

a. Offerors for transportation of the hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. The conditions specified in 49 CFR 173.3(c) must be satisfied when the drum authorized by this exemption is used.

c. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

d. Each container body and lid manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.

e. The container body must be marked "DOT-E 9618". Additionally, effective June 1, 1991, each container lid must also be marked "DOT-E 9618".

f. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; the special packaging requirements of 49 CFR 173.3a for certain poisonous materials; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100-180.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

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10. EXPIRATION DATE. January 1, 1993.

Issued at Washington, D.C.

AUG 20 1991


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FHWA, FRA.